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July 29, 2015					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 1949(F)

WALTER MUZORORI

v.

CANADA STATES AFRICA LINES INC. (CSAL)

ORDER GRANTING MOTION FOR ENLARGEMENT OF TIME

On July 28, 2015, Complainant filed a motion seeking an extension of time to file his reply brief, which is due on July 30, 2015. The motion indicates that Complainant, who had been proceeding *pro se*, retained counsel on July 28, 2015. New counsel requested a thirty day extension to prepare the reply brief.

On July 29, 2015, Respondent filed its opposition to the motion for extension. The opposition contends that there was no showing of good cause for failure to submit the request at least five days prior to the filing date, that there are not exceptional circumstances justifying the extension, that at the May 4, 2015, pre-hearing conference, Complainant stated that he was not planning to obtain counsel, and new counsel did not confer with counsel for Respondent.

Pursuant to Commission Rule 71, there is a duty to confer prior to filing a motion for an extension. 46 C.F.R. § 502.71(a). If counsel files any other motions, these requirements must be followed, or the motion may be rejected.

Under the circumstances of this case, the extension will be permitted. However, the parties will be required to meet and confer to discuss whether settlement is possible. The parties shall submit a joint status report by August 7, 2015. The joint status report should not go into details regarding settlement negotiations but should indicate whether counsel have spoken with each other.

The parties are reminded that all briefs should be filed with the Secretary, served on the other party, and an electronic copy in a word-processing format should be sent to all parties *and to the Office of Administrative Law Judges*. The reply brief should respond to the legal arguments discussed in Respondent's opposition brief. The reply brief may include responses to any findings of fact proposed in the opposition brief but may not include new proposed findings of fact.

Accordingly, it is hereby **ORDERED** that the parties file a joint status report by August 7, 2015, and that Respondent file its reply brief by August 31, 2015.

A handwritten signature in cursive script, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth

Administrative Law Judge